

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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VICTOR PANTOJAS,

Plaintiff,

-v-

**FIRST AMENDED COMPLAINT
AND DEMAND FOR A JURY
TRIAL**

12-CV-5663 (JSR) (RLE)

THE CITY OF NEW YORK, New York City Police
Department Officer JASON MERCHAN (Shield No.
12777), New York City Police Department Officer
JOSEPH MARTINEZ (Shield No. 10535), in their
individual capacities,

Defendants.

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Plaintiff Victor Pantojas, by his attorney, Robert M. Quackenbush of Rankin and Taylor,
PLLC, as and for his first amended complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate the plaintiff's rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, as amended and codified at 42 U.S.C. § 1983.
2. Plaintiff Victor Pantojas' rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally arrested him for trespass inside of his own apartment building and caused criminal process to be issued against him. By reason of defendants' actions, including their unreasonable and unlawful conduct, protracted detention, and malicious prosecution, Mr. Pantojas was deprived of his constitutional rights.
3. Defendant City of New York ("City") and the NYPD have implemented and continue to conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy which has

resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of authorized visitors and residents of housing developments under the control of the New York City Housing Authority (“NYCHA”), such as Mr. Pantojas.

4. A vertical patrol is a top-to-bottom walk-through or patrol of “sweep” of hallways, stairwells, rooftops and landings, elevators, and other common areas of a NYCHA residence. *See*, NYPD Patrol Guide 212-59 and 212-60. Under the vertical patrol policy and trespass arrest practices, NYPD officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime, and unlawfully arrest individuals for trespass without probable cause.
5. In addition to organized and directed vertical patrols in NYCHA residences, some trespass arrests are the result of less formal sweeps.
6. As a result, the number of trespass arrests in NYCHA residences has increased dramatically in recent years, without any reasoned justification or correlative rise in criminal activity. Instead, people with a legitimate reason for being on NYCHA residential property, such as residents like Mr. Pantojas, are being unconstitutionally detained and/or arrested on a routine basis.
7. Defendant City makes arrests under trespass laws in NYCHA residences in an unlawful manner, and without adequate training and controls, based on the race, ethnicity, and/or national origin of NYCHA residents and visitors.
8. Defendant City implements these policies, practices, and customs in an intentionally discriminatory and race-based manner by focusing the patrols and trespass arrest practices entirely on communities of color, such as NYCHA residences, where historically entrenched

racial segregation ensures that African-Americans and Latinos will bear the brunt of defendant City's unlawful actions. Defendant City also discriminatorily acquiesces in, ratifies, and fails to monitor or rectify NYPD officers' widespread unlawful practices because the victims are overwhelmingly African-Americans and Latinos.

9. The decision to enforce trespass laws in this disproportionate way is not explained or justified by underlying crime levels in NYCHA residences. The rate of trespass stops, arrests, and enforcement in predominantly minority NYCHA residences is, on average, three (3) times higher than surrounding areas with similar rates of crime. Moreover, where predominantly minority NYCHA residences are located in predominantly white or gentrifying neighborhoods, the disparities in trespass arrest rates increase even further.
10. In addition to routine violations of residents' and authorized guests' rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, defendant City's vertical patrol policy and trespass arrest practices interfere with the rights of residents, such as Mr. Pantojas, to freely associate with individuals in NYCHA housing, including his family with whom he lives.

JURISDICTION AND VENUE

11. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343 (3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the First, Fourth, and Fourteenth Amendments to the Constitution of the United States.
12. Venue is proper pursuant to 28 U.S.C. § 1391 because defendant City resides in the Southern District of New York, because the vertical patrol policy was principally formulated and promulgated within the Southern District of New York, and the incident giving rise to this lawsuit occurred within the confines of Southern District of New York.

13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

14. Mr. Pantojas is a resident of Bronx County in the State of New York.

15. Mr. Pantojas is a Latino man.

16. Defendant City is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

17. Defendants NYPD Officer Jason Merchan (Shield No. 12777) and NYPD Officer Joseph Martinez (Shield No. 10535) (collectively, the "individual defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD. The individual defendants are being sued herein in their individual capacities.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and had otherwise performed and engaged in conduct incidental to the pursuit and performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD.

19. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice and gross disregard for Mr. Pantojas's rights.

STATEMENT OF FACTS

PLAINTIFF'S ARREST ON MAY 17, 2010

20. The facts alleged herein occurred at approximately 8:00 p.m. on May 17, 2010 within 520 East 137th Street in Bronx County, also known as the Millbrook Houses.
21. Millbrook Houses is a NYCHA residential building.
22. On May 17, 2010 and at all times relevant to this action, Mr. Pantojas was a lawful resident of Millbrook Houses, where he lives with his family in an apartment on the building's fifteenth floor.
23. At approximately 8:00 p.m. on May 17, 2010, Mr. Pantojas walked out of his apartment on the fifteenth floor to make a private phone call.
24. Mr. Pantojas walked to the staircase between the sixteenth floor and the roof, sat down, and made a phone call.
25. There are no notices or other signage indicating that sitting on stairs between the sixteenth floor and the roof is illegal conduct.
26. While Mr. Pantojas was sitting on the stairs and talking on phone, one of the individual defendants approached him from the 16th floor and the other individual defendant approached him from the roof entrance to the stairs.
27. Immediately upon seeing Mr. Pantojas, one of the individual defendants asked him, in sum and substance, "WHAT'RE YOU DOING HERE? YOU TRESPASSING?"
28. Mr. Pantojas responded, in sum and substance, "I'm on the phone. I live here."
29. The officer then asked Mr. Pantojas, in sum and substance, "YOU GOT I.D.?"
30. In response, Mr. Pantojas truthfully told the officers, in sum and substance, "Yeah, in my apartment."

31. Nevertheless, the officers immediately rear-cuffed Mr. Pantojas and placed him under arrest.
32. The officers never permitted Mr. Pantojas to retrieve his identification from his apartment.
33. Further, the officers did not investigate Mr. Pantojas' claim that he was a lawful resident.
34. The officers transported Mr. Pantojas to a police station located at 737 Melrose Avenue, between East 155th and East 156th Streets in the South Bronx.
35. There, Mr. Pantojas was detained for slightly more than two hours.
36. Upon his release from custody at approximately 10:10 p.m., Mr. Pantojas was issued a desk appearance ticket ("DAT") charging him with criminal trespass in the second degree, New York Penal Law § 140.15, and requiring him to appear in the criminal court located at 215 East 161st Street in the Bronx on July 27, 2010 to answer the charge.

PLAINTIFF'S APPEARANCE IN CRIMINAL COURT ON JULY 27, 2010

37. At approximately 9:30 a.m. on July 27, 2010, Mr. Pantojas appeared at the criminal court located at 215 East 161st Street in the Bronx in order to answer the charge against him.
38. When Mr. Pantojas arrived in the so-called "DAT Part," court officers informed him and several other individuals that their cases were not ready and would not be called on that day.
39. The officers further informed Mr. Pantojas and others that they would be contacted within 60 days if their case was going to go forward.
40. Accordingly, the court officers requested that Mr. Pantojas fill out a form indicating his address and phone number so he could be contacted with a new court date.
41. Mr. Pantojas duly filled out the form with his correct name, address, and phone number.
42. Before leaving, the court officers gave Mr. Pantojas a written form which stated, in relevant part, as follows:

New York City Police Department Desk Appearance Ticket Unit
At this time, your case is not ready. When a new court date has been set, you will receive a letter from the New York City Criminal Justice Agency.

43. The officer then stapled that form to the front of Mr. Pantojas' DAT.
44. Mr. Pantojas did not receive any letter from the New York City Criminal Justice Agency, the NYPD, or any other governmental entity regarding a new court date. Upon information and belief, no such notice was ever sent to Mr. Pantojas.
45. Likewise, Mr. Pantojas did not receive a phone call from any governmental agency informing him of a new court date. Upon information and belief, no such phone call was ever made to Mr. Pantojas.

PLAINTIFF'S RE-ARREST ON AUGUST 27, 2010

46. At approximately 2:00 p.m. on August 27, 2010, Mr. Pantojas entered the "6" train station located at Brook Avenue and East 138th Street, on the uptown side of the station.
47. Mr. Pantojas paid sufficient fare and lawfully entered the train station.
48. Upon entry, an NYPD officer stopped Mr. Pantojas inside the station and asked for his identification and proof he had paid his fare.
49. In response, Mr. Pantojas produced both items to the officer.
50. After a couple minutes, the officer informed Mr. Pantojas there was a bench warrant for his arrest related to the May 17, 2010 incident and subsequently rear-cuffed Mr. Pantojas and placed him under arrest for the warrant.
51. Mr. Pantojas was then transported to the NYPD's 40th Precinct located at 257 Alexander Avenue in the Bronx, where he remained for approximately eight hours.
52. At approximately 10:00 p.m. on August 27, 2010, Mr. Pantojas was brought to Bronx Central Booking.

53. Mr. Pantojas spent the next two nights in Bronx Central Booking.

PLAINTIFF'S APPEARANCE IN CRIMINAL COURT ON AUGUST 29, 2010

54. At approximately 10:30 a.m. on August 29, 2010, Mr. Pantojas was brought before the criminal court related to the bench warrant.

55. In court, the Hon. William Mogelescu verbally noted that Mr. Pantojas' alleged trespass occurred inside his own apartment building.

56. In response to this fact, Mr. Pantojas was offered, and he accepted, an adjournment in contemplation of dismissal, a resolution which resulted in the dismissal of his case.

57. Shortly thereafter, Mr. Pantojas was released from custody.

58. Accordingly, Mr. Pantojas was in custody approximately 44 ½ hours related to his re-arrest on August 27, 2010 stemming from his unlawful arrest in his own apartment building.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. §1983**

59. Mr. Pantojas incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

60. The individual defendants, under color of state law, subjected Mr. Pantojas to the foregoing acts and omissions without due process of law, thereby depriving Mr. Pantojas of his rights, privileges and immunities secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Mr. Pantojas was aware and did not consent; (d) freedom

from the lodging of false charges against him by police; (e) freedom from abuse of process; (f) freedom from having government actors fail to intervene to prevent constitutional violations when they knew such violations were occurring and when they reasonably could have prevented said violations; and (g) the enjoyment of equal protection, privileges and immunities under the laws.

61. Defendants' deprivations of Mr. Pantojas's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM
MONELL CLAIM AGAINST DEFENDANT CITY- 42 U.S.C. § 1983

62. Mr. Pantojas realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

63. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the City which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD.

64. Defendant City and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

65. The individual defendants arrested and incarcerated Mr. Pantojas in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Mr. Pantojas's liberty, well-being, safety and constitutional rights.

66. The acts complained of were carried out by the aforementioned officers in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

67. The aforementioned customs, practices, procedures and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices of:

- a. Detaining, arresting and manufacturing evidence against individuals who were detained while present in NYCHA buildings, in a practice commonly referred to as “vertical sweeps” or “vertical patrols;”
- b. Arresting persons known to be innocent in order to meet “productivity goals” (*i.e.*, arrest quotas);
- c. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- d. Discouraging police officers from reporting the corrupt or unlawful acts of other police officers;
- e. Retaliating against officers who report police misconduct; and
- f. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the NYPD.

68. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City:

- a. *Schoolcraft v. City of New York*, 10-CV-6005 (RWS) (S.D.N.Y.) (police officer who exposed a precinct’s policies and practices of illegal quotas for the issuance of summonses and arrests, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
- b. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.) (officer who purposefully swore out a false complaint and used excessive force is prosecuted for perjury and for recklessly using physical force; the plaintiff was engaged in expressive conduct, *to wit*, riding in a Critical Mass bicycle ride, when he was assaulted by the officer);
- c. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (S.D.N.Y.) (police officers at the 24th Precinct issue four summonses to a woman in retaliation for her lodging a complaint with the Civilian Complaint Review Board at the precinct);

- d. *Lin v. City of New York*, 09-CV-1936 (PGG) (S.D.N.Y.) (officers arrest person lawfully photographing an arrest of a bicyclist in Times Square and swear out a criminal complaint whose facts are contradicted by video evidence; officers also arrest a bystander after refusing an unlawful order to produce identification);¹
- e. *Colon v. City of New York*, 09-CV-00008 (E.D.N.Y.) In an Order dated November 25, 2009, which denied the City's motion to dismiss on *Iqbal/Twombly* grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in a purported buy-and-bust operation, the Honorable District Court Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

- f. *Callaghan v. City of New York*, 07-CV-9611 (PKC) (JLC) (S.D.N.Y.) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, *to wit*, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);
- g. *Dunlop v. City of New York*, 06-CV-0433 (RJS), 2008 U.S. Dist. LEXIS 38250 (S.D.N.Y.) (bystander arrested outside the 2004 Republican National Convention while observing arrests occurring in public; alleges that police destroyed exculpatory evidence by deleting portions of a video which contradict sworn criminal complaint);
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207 (S.D.N.Y.) (police officer alleges that he was terminated in retaliation for cooperating with another officer's claims of a hostile work environment);
- i. *MacNamara v. City of New York*, 04-CV-9216 (RJS) (JCF) (S.D.N.Y.) (evidence of perjured sworn statements systematically provided by officers to attempt to cover-up or justify unlawful mass arrests of approximately 1800 people has been and continues to be developed in the consolidated litigation arising out of the 2004 Republican National Convention);

¹ For a description of this case and settlement, *see*, Anahad O'Connor, *City Pays \$98,000 to Critical Mass Cyclists*, N.Y. Times, March 30, 2010, *available at* <http://cityroom.blogs.nytimes.com/2010/03/30/city-pays-98000-to-critical-mass-cyclists/>.

- j. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.) (officers fabricated evidence and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- k. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.) (same);
- l. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.) (same);
- m. *Powers v. City of New York*, 04-CV-2246 (NGG), 2007 U.S. Dist. LEXIS 27704 (E.D.N.Y.) (police officer alleges unlawful retaliation by other police officers after testifying about corruption within the NYPD);
- n. *Kunstler v. City of New York*, 04-CV-01145 (RWS) (MHD) (S.D.N.Y.) (group of peaceful anti-war protestors arrested without probable cause and questioned by NYPD about their political beliefs; photographic and video surveillance of the protestors taken due to plaintiffs' political beliefs);
- o. *Allen v. City of New York*, 03-CV-2829 (KMW) (GWG) (S.D.N.Y.) (police surround and arrest groups of persons lawfully protesting against the policies of the World Economic Forum; numerous police officers falsely swear that they gave orders to disperse; and, even if they had given such orders, the police provided no place of egress for the protestors to disperse);
- p. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.) (officers arrest and use excessive force against a candidate for City Council for trespassing in his own residential building);
- q. *Nonnemann v. The City of New York*, 02-CV-10131 (JSR) (AJP), 2004 U.S. LEXIS 8966 (S.D.N.Y.) (former NYPD lieutenant alleging retaliatory demotion and early retirement after reporting a fellow officer to IAB and CCRB for the officer's suspicionless, racially-motivated stop-and-frisk of a group of Hispanic youth);
- r. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- s. *Barry v. New York City Police Department*, 01-CV-10627 *2 (CBM), 2004 U.S. LEXIS 5951 (S.D.N.Y.) (NYPD sergeant alleged retaliatory demotion and disciplinary charges in retaliation for sergeant's allegations of corruption within her unit and further alleged that the NYPD had an "unwritten but pervasive custom of punishing officers who speak out about police misconduct and encouraging, if not facilitating, silence among officers");
- t. *Taylor v. City of New York*, 01-CV-5750 (ILG) (MDG) (E.D.N.Y.) (same as *Richardson*, *supra*, except without the excessive force; judge at the criminal trial

acquitting Mr. Taylor noted, on the record, that he had “significant doubt” about the truthfulness of the officers who testified);

- u. *Walton v. Safir*, 99-CV-4430 (AKH), 122 F.Supp.2d 466 (S.D.N.Y. 2000) (factual findings after trial that a 12-year veteran of NYPD was terminated in retaliation for criticizing the racially-motivated policies of the NYPD’s Street Crime Unit and for alleging that such policies led to the NYPD shooting death of Amadou Diallo);
- v. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD), 983 F.Supp. 365, 380 (S.D.N.Y. 1997) (holding that the NYPD had an “unwritten policy or practice of encouraging or at least tolerating a pattern of harassment directed at officers who exposed instances of police corruption”);
- w. *Ariza v. City of New York*, 93-CV-5287 (CPS), 1996 U.S. Dist. LEXIS 20250 at*14 (E.D.N.Y.) (police officer alleges retaliatory duty assignments and harassment in response to his allegations about a racially-discriminatory workplace; on motion for summary judgment, the Court held that the police officer had established proof of both a widespread usage of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department); and
- x. *Sorluccho v. New York City Police Department*, 89-CV-7225 (CCH), 88 F.2d 4 (2d Cir. 1989) (former officer entitled to trial on issue of whether she was re-assigned and then terminated after reporting that a fellow officer had raped her).

69. These cases reveal an unbroken chain of a willingness on the part of NYPD officers to falsify evidence in order to justify baseless arrests.

70. Furthermore, the existence of the aforesaid unconstitutional customs and policies, **specifically with regard to “vertical patrols” in NYCHA residences** may be further inferred from the following:

- a. The NYPD first implemented vertical patrols in 1991. The protocol was adopted to address crime, and specifically drug activity, in NYCHA residences. It is considered an “important component of the [NYPD]’s drug control strategy. See, NYPD Patrol Guide Procedure 212-59.
- b. The NYPD policies for policing NYCHA residents are different in many ways from NYPD standard policies. These unique practices affect a large number of people, mostly people of color, and have caused significant community concern.²

² New York Lawyers for the Public Interest, *Community Oversight of Policing Project: No Place Like Home* (2008), available at <http://www.nylpi.org/images/FE/chain234siteType8/site203/client/2008%20COPP%20Report%20with%20New%20Cover.pdf>.

- c. NYCHA has a number of policies premised on reducing criminal activity. For example, non-residents who are arrested for felony drug charges (drug sales) are banned from the property. Therefore, even if invited by a resident of the building, absent a formal exemption from this policy, a person with this criminal record in their past will generally not be allowed to visit the property.
- d. NYCHA relies on the NYPD to enforce many of its drug and crime prevention rules through enforcement of trespassing laws. As will be discussed below, vertical patrol procedures have been developed by the NYPD to accomplish this goal.
- e. The NYPD vertical patrol procedure requires officers to patrol the inside and outside of NYCHA buildings routinely each day, and creates the occasion for many negative interactions between civilians and police around and inside the buildings. Due to this routine patrolling, negative interactions with NYPD officers is a near daily experience in the lives of thousands of people who live in, or are invited to, NYCHA buildings.
- f. The procedure is found at section 212-59 of the NYPD Patrol Guide, with effective date of January 1, 2000, and provides in relevant sections as follows:

NYPD officers “shall frequently inspect the interior of Housing Authority buildings on assigned posts as follows: ... inspect mailboxes and the interior of lobby... inspect elevators... proceed to the top floor... use staircase to gain access to the roof... roof landing, elevator rooms, any other installations... patrol each floor, staircase and hallway... from the top floor to the ground floor... inspect elevator doors on each floor... elevator door glass... basement areas... be alert for persons loitering... alternate between outside area patrol and interior vertical patrol of Authority grounds and buildings...”³

- g. The Patrol Guide also states: “When inspecting [a NYCHA] building, members of the service [NYPD officers] shall take note of unauthorized persons remaining in lobbies, basements, staircases, roof landings and take appropriate police action where necessary.”⁴
- h. In the course of a vertical patrol, multiple NYPD officers approach anyone they observe in the common areas of a building and require them to present identification proving their residency in the building or to affirmatively establish a connection to a specific building resident. If an individual stopped and seized pursuant to a vertical patrol fails to identify herself to the satisfaction of the officer, or is unable to demonstrate to satisfaction of the officer that she is going to, or coming from, a visit to a resident or her own home, she is arrested for trespass. If the individual has not

³ See, *id.*

⁴ See, *id.*

already been searched for contraband pursuant to the seizure, she will be subjected to a search for contraband pursuant to the arrest.

- i. Defendant City's policy amounts to a roving pedestrian checkpoint wherein NYPD officers indiscriminately stop, seize, questions, and even search individuals in common areas of NYCHA residences in the absence of individualized objective facts.
- j. The number of trespass arrests in NYCHA residences has surged. The City has not provided any legitimate and neutral explanation for this rise in the arrest rate.
- k. In 2005, the NYPD Housing Bureau alone conducted approximately 181,000 vertical patrols in NYCHA residences, and an average of 142,000 annually over the previous six (6) years.⁵ These figures understate the actual number of vertical patrols, however, since NYPD officer outside of the Housing Bureau also patrol NYCHA residences, also conduct vertical patrols in NYCHA residences, and also arrest people for trespass in NYCHA residences.
- l. In addition to directed or organized vertical sweeps in NYCHA residences, NYPD officers also sweep NYCHA residences for alleged trespass on an informal basis.
- m. Trespassing in public housing is a Class B misdemeanor under subsection (e) of N.Y.P.L. § 140.10, which was enacted in 1992, shortly after the inception of the vertical patrol program.
- n. Officers who make trespass arrests are now required by some local District Attorneys' offices to complete a special supporting deposition that sets forth the officer's observations and basis for stopping, seizing, and arresting an individual. *See, e.g.*, Supporting Deposition SD-4 for N.Y.P.L. §§ 140.15, 140.10(e) and 140.05, rev'd 04/06/2009 ("Manhattan SD"); Supporting Deposition SD-4 for NYPL §§ 140.15 and 140.10(e), rev'd 06/05/2007 ("Bronx SD"); Supporting Deposition; Criminal Trespass Fact Sheet ("Brooklyn SD").
- o. In Manhattan and the Bronx, the "Observations" section of the supporting deposition merely lists the location where the defendant was observed, the existence of conspicuously posted signs, and whether the entry was locked. *Id.* at ¶¶ 1-3. An officer is not required to identify individualized, objective facts supporting suspicion that criminal activity is afoot.
- p. These supporting depositions are consistent with and reflective of defendant City's policy, practice and custom of indiscriminately stopping, questioning, and seizing every person they observe in NYCHA residences without individualized reasonable suspicion.

⁵ *See, Testimony of Chief Joanne Jaffe, NYPD Housing Bureau, New York City Council Committee on Public Safety an Subcommittee on Public Housing (November 2, 2006) at 24.*

- q. The NYPD Patrol Guide on vertical patrols provides NYPD officer no guidance on who is to be stopped, seized, questioned, searched or arrested for trespass. It simply directs uniformed patrol officers to “take note of unauthorized persons remaining in lobbies, basements, stair cases and roof landings and take appropriate police action where necessary.”⁶ Yet the vertical patrol provision contains no criteria for determining who is – and who is not – an “unauthorized person.”
- r. The vertical patrol policy and trespass arrest practices implemented by NYPD officers fail to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or “unauthorized person” in an NYCHA hallway from a lawful resident or visitor in transit, such as Mr. Pantojas. Given the large number of people legally permitted in a NYCHA residence, a police officer who is unfamiliar with building residents and visitors cannot consistently or reliably differentiate between a suspected trespasser and a building resident, visitor, permittee, or licensee based on this policy.
- s. Defendant City’s failure to provide adequate guidance, training, and support to NYPD officers regarding how to conduct vertical patrols, including whom to stop, question, seize, search and arrest for trespass, results in a *de facto* roving checkpoint and a pattern and practice of unlawful stops, seizures, and arrests.
- t. The only guiding principles provided to NYPD officers are consistent with, and reflective of, a policy, practice, and custom of reckless arrests based on less than probable cause. In Manhattan and the Bronx, the supporting deposition requires NYPD officers to select an “arrest element” for the arrestee’s “reason for presence in the building. See, Manhattan SD at ¶ 5; Bronx SD at ¶ 5. Some of the reasons include, but are not limited to: (a) defendant admitted he was not a resident and did not know the surname or apartment number of tenant; (b) defendant identified the person and apartment they were visiting but the officer “could not locate” the person; or (c) a defendant gives no reason, is not on the tenant roster, and the officer “could not locate” anyone who gave them permission to enter. *Id.*
- u. Under this policy, as written, people are arrested in instances in which they only know their friend’s first name or nickname, or only know the apartment by the location rather than by number. Individuals who remain silent upon questioning for trespass by NYPD officers are subject to arrest. This is true even if the only basis for the NYPD officer’s questioning is the fact that the individual was present in a common area of a NYCHA residence.
- v. Defendant City’s vertical patrol policy and trespass arrest practices, even if diligently followed, cause a pattern and practice of false arrests of many people who are lawfully on the premises. Without probable cause to suspect criminal activity, the individual is forced to defeat a presumption of guilt with the presentation of documents or witnesses at the time of arrest.

⁶

See, NYPD Patrol Guide 212-6.

- w. Trespass is an offense which requires that a person unlawfully enter or remain in a prohibited area. There is no law prohibiting a resident or authorized guest's mere presence in or around the stairwells, hallways, roofs, or roof landings in his or her own apartment building.
- x. Loitering also requires a specified unlawful purpose for being present at a location, such as "begging," N.Y.P.L. § 240.35(1); gambling, N.Y.P.L. § 240.35 (2); sexual conduct, N.Y.P.L. § 240.35(3); possessing a controlled substance, N.Y.P.L. § 240.36; or engaging in prostitution, N.Y.P.L. § 240.37.
- y. Thus, there is no legal basis for wholesale stopping, seizing, questioning, searching, and arresting individuals, including residents and authorized guests such as Mr. Pantojas, for mere presence in a NYCHA residence. Yet, defendant City has enforced, promoted, encouraged and sanctioned these customs and practices.
- z. This constant presence in NYCHA buildings has been lauded by the NYPD. According to 2004 City Council testimony of NYPD Commanding Officer Phipps:

[O]ne of the most effective crime fighting tools available in the Housing Bureau is the Trespass Affidavit Program, through which NYCHA gave the NYPD permission to conduct vertical patrols. In a vertical patrol, officers enter NYCHA buildings and arrest individuals unauthorized to be on the grounds for criminal trespass. This program also gives the NYPD the authority to arrest unauthorized persons or even residents and charge them with second-degree criminal trespass for entering certain prohibited areas of the building such as roof landings, rooftops, storerooms, maintenance areas, and basements. Vertical patrols also enable officers to observe the physical facility for any hazards of dangerous conditions that will then be reported to NYCHA.⁷

- aa. A recent survey of residents and guests of the Thomas Jefferson Houses, a NYCHA entity, revealed that approximately thirty (30) percent of the residents surveyed reported that they had been charged with trespassing, despite the fact that they lived there.
- bb. Approximately seventy (70) percent of those surveyed at the Thomas Jefferson Houses reported that they had been repeatedly stopped when simply coming and going around their home.⁸

⁷ See, *id*, citing Oversight Hearing: Public Safety Issues in Public Housing Developments, New York City Council, November 2, 2006 (paraphrased from his comments).

⁸ See, New York Lawyers for the Public Interest, *supra*, at note 1.

- cc. At the Walt Whitman Houses, also a NYCHA entity, approximately forty-three (43) percent of residents and guests surveyed indicated that they had been stopped by the police in the past year when they were simply going to and from their homes.⁹

71. Furthermore, the existence of the aforesaid unconstitutional customs and policies, **specifically with regard to “vertical patrols” in NYCHA residences**, may be further inferred from the following civil rights actions filed against defendant City.

- a. *Ikker v. The City of New York, et al.*, 11-CV-4537 (DAB) (S.D.N.Y.) (officers accused of arresting an invited guest of residents for trespass, despite the attestations of the residents that the arrestees was in fact their guest);
- b. *Davis v. City of New York*, 10-CV-0699 (SAS) (S.D.N.Y.) (class action against City and NYCHA challenging the City’s policy and practice of vertical sweeps in NYCHA buildings, wherein NYCHA residents and non-residents were wrongfully arrested for trespassing when they, in fact, had a legal basis to be where they were);
- c. *Arzu v. City of New York*, 10-CV-3091 (DAB) (S.D.N.Y.) (officers accused of arresting on trespass charges the same invited guest on four separate occasions as he exited the residence following his visits);
- d. *Lackhan v. The City of New York*, 10-CV-3354 (DAB) (S.D.N.Y.) (officers accused of arresting and charging with trespass a home health aide as she exited the residence of her patient, and refusing to conduct a reasonable investigation);
- e. *Saleem v. The City of New York, et al.*, 09 CV-5186 (DAB) (S.D.N.Y.) (in furtherance of the NYPD’s “vertical patrol” policy, police arrest a man on a fabricated charge of possessing a gravity knife after confirming that the man did, in fact, have a legitimate reason to be on the premises); and
- f. *Williams v. City of New York*, 06-CV-6601 (NGG), 2009 U.S. Dist. LEXIS 94418 (E.D.N.Y.) (officers arrest plaintiff during a “vertical patrol” of a public housing project despite evidence that he had a legitimate reason to be on the premises).

72. Furthermore, **specifically with regard to “vertical patrols,” there can be little doubt that said practices are performed in a purposefully racially discriminatory manner.**

- a. Defendant City applies this unlawful vertical sweep policy and trespass arrest practices in an intentionally discriminatory and race-based manner by focusing vertical patrols and trespass arrests on communities of color. Defendant City has chosen to enforce the trespass laws in NYCHA residences in an unlawful manner, and

⁹ See, *id.*

chosen to do so without adequate training and controls, because of the race of NYCHA residents and visitors.

- b. For example, defendant City chooses to target NYCHA residences where historically entrenched racial and residential segregation ensures that African-Americans, such as Mr. Pantojas, will bear the brunt of NYPD sweeps and trespass arrests. According to demographic data maintained by NYCHA, over ninety-five (95) percent of their residents are non-white.
- c. The rate of trespass stops is significantly higher in predominantly minority NYCHA residences than in surrounding areas or in the rest of the city. The disparities in arrest rates are even more extreme. These disparities are not explained or justified by underlying crime levels.
- d. The role that race plays in defendant City's enforcement and officer deployment decisions is further illustrated by the fact that the rate of trespass stops and arrests is higher, and the disparity in arrest rates increases, when there is a substantial difference between the racial composition of a housing development and the population in its surrounding neighborhood. Thus, where predominantly minority NYCHA residences are in white or gentrifying neighborhoods, there is a greater difference in trespass arrests and total enforcement. This remains true after controlling for other relevant factors.
- e. These disparities are the result of a unique and separate enforcement process consistent with intentional targeting based on race. Essentially, the enforcement practices in NYCHA residences are not related to the enforcement practices in the surrounding areas. This too is true after controlling for other relevant factors or possible explanations.
- f. Because vertical patrols and trespass arrests are conducted in an intentionally discriminatory fashion, the overwhelming majority of persons arrested for trespass in New York City are African-American or Latino, despite the fact that African-Americans and Latinos constitute only fifty-four (54) percent of the city's population. This disparity has increased over time.
- g. African-Americans such as Mr. Pantojas are more likely to be stopped for suspicion of trespass and more likely to be arrested for trespass.
 - i. African-Americans in New York City are stopped for trespass approximately 19 times more often than whites. Within NYCHA residences, African-Americans are stopped on suspicion of trespass two and one-half times more often than whites.
 - ii. African-Americans in New York City are arrested for trespass almost ten (10) times more often than whites. In NYCHA residences, African-Americans have over a twenty-five (25) percent higher chance of being arrested for trespass.

- iii. Although whites represent forty-five (45) percent of the citywide population, they are only four (4) percent of those stopped on suspicion of trespass and six point seven (6.7) percent of those arrested for trespass.
- iv. Although African-Americans such as Mr. Pantojas represent approximately twenty-five (25) percent of the citywide population, fifty-one (51) percent of trespass arrests are of African-Americans.
- h. Defendant City's policy, practice, and custom of stopping individuals without reasonable suspicion, and arresting individuals for trespass without probable cause in NYCHA residences, also has an easily foreseeable discriminatory impact on African-Americans and Latinos.
- i. Defendant City is aware of these constitutional violations and their disparate impact on minority residents of NYCHA and their visitors.¹⁰
- j. Nevertheless, defendant City intentionally allows the constitutional violations to persist because of the race, ethnicity, and/or national origin of NYCHA residents and authorized visitors. Further, the City does not pursue similar law enforcement policies, practices, or customs or permit similar level of unconstitutional violations by NYPD officers in white communities.
- k. The reckless and unregulated character of vertical patrols, and the discriminatory nature of defendant City's trespass arrest practices, are well-illustrated by the trespass arrest of NYPD Sergeant Reginald McReynolds on October 26, 2009. Sergeant McReynolds, who is assigned to the NYPD Quality Assurance Division, said "[t]his incident has opened my eyes... I can think of no other reason for being stopped except for my skin color."¹¹

73. Furthermore, the existence of the aforesaid unconstitutional customs and policies, **specifically with regard to "productivity goals,"** may be further inferred from the following:

¹⁰ See, e.g., *People v. Ruiz*, 2007 N.Y. Misc. LEXIS 3530, at *4 (N.Y. Sup. Ct. 2007); Citywide Council of Presidents of NYCHA, *The Public Housing Police and Public Housing Resident Perceptions* (Nov. 20, 2009); New York Lawyers for the Public Interest, *No Place Like Home: A Preliminary Report on Police Interactions with Public Housing Residents in New York City* (2008); Barbara Ehrenreich, *Is It Now a Crime to be Poor?*, N.Y. Times, Aug. 9, 2009, at WK9; M. Chris Fabricant, *Rousting the cops: One man stands up to the NYPD's apartheid-like trespassing crackdown*, Vill. Voice, Oct. 20, 2007; Rocco Parascandola, *Victim down on a policy*, Newsday, Oct. 25, 2007, at A19; Rocco Parascandola, *Trespassing charge nixed*, Newsday, Aug. 4, 2007, at A11; Rocco Parascandola, *The trouble with the trespassing law*, Newsday, July 30, 2007, at A6; Rocco Parascandola, *Questions don't end as teen beats charges*, Newsday, June 25, 2007, at A12; Rocco Parascandola, *The Crime Column: Stop-and-frisk stats suggest flaws in NYPD practices*, Newsday, Apr. 10, 2007, at A4; Cara Tabachnick, *Trespass laws questioned: Stricter rules aimed at curbing crime and violence in projects often catch innocent bystanders in wake*, Newsday, Apr. 10, 2007, at A4.

¹¹ *Cop: I was Profiled*, N.Y. Daily News, Dec. 30, 2009, at 21.

- a. NYPD Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set “productivity goals.”¹²
- b. An NYPD transit lieutenant was captured on tape telling officers to make more arrests to meet a captain's order and do more work if they want overtime assignments. “All they care about is ... summonses and arrests and 250s,” Lt. Janice Williams said, using police jargon for the NYPD Stop, Question and Frisk reports. She added, “The bottom line is everybody’s individual activity is being looked at.” Later in the recording - made during a roll call in 2010 at Transit District 34 in Coney Island - she said only officers with “good productivity” will get the opportunity to work overtime. She also said Capt. James Sheerin wanted every officer to make at least one arrest per month - up from the previous order of one every three months - because crime had spiked and arrest totals were lower than other transit districts. “He wants everyone to get in the mindset that there’s no more collar a quarter,” Williams said.¹³
- c. NYPD Officer Adil Polanco has asserted that his command, the 41st Precinct, regularly requires officer to make at least “one arrest and twenty summonses” per month. P.O. Polanco’s allegations were confirmed by an audiotape obtained by the media. The contents of the tape reveal that these quotas are enforced through coercion and threats of job loss, *to wit*, a patrol supervisor at the 41st Precinct is overheard saying: “If you think one and 20 is breaking your balls, guess what you’ll be doing. You’re gong (*sic*) to be doing a lot more, a lot more than what they’re saying.” The tape also reveals that another patrol supervisor chimed in and told the officers: “Next week, 25 and one, 35 and one, and until you decide to quit this job and go to work at a Pizza Hut, this is what you’re going to be doing till (*sic*) then.”¹⁴
- d. The New York Daily News obtained and published two (2) internal memos which were posted inside the roll-call room at the NYPD’s 77th Precinct. The memos specifically instructed officers about “number of tickets to give drivers for cell phone, seat belt, double-parking, bus stop, tinted windows and truck route violations” they were expected to issue. The memos remained posted for several weeks inside the roll-call room until the media began inquiring.¹⁵

¹² Jim Hoffer, *NYPD Officer claims pressure to make arrests*, WABC-TV Eyewitness News, March 2, 2010, available at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7305356> (“Police Officers like others who receive compensation are provided productivity goals and they are expected to work”).

¹³ Rocco Parascandola, *NYPD Lt. Janice Williams captured on tape pushing for more busts, but brass says there’s no quotas*, N.Y. Daily News, March 3, 2011, available at http://www.nydailynews.com/ny_local/2011/03/03/2011-03-03_nypd_lt_janice_williams_captured_on_tape_pushing_for_more_busts.html.

¹⁴ *Id.*

¹⁵ James Fanelli, *Cops at Brooklyn’s crime-ridden 77th Precinct told to meet quotas for moving violations, memos say*, N.Y. Daily News, Nov. 8, 2010, available at http://www.nydailynews.com/ny_local/2010/11/08/2010-11-08_cops_told_to_meet_quotas.html.

- e. Responding to a query from a civilian who was cited on consecutive days in November of 2009 for allegedly occupying more than one seat on the New York City subway, the officer responded: “Recently we’ve been told to write tickets instead of give warnings for this type of thing.” The officer explained that they needed to meet quotas.¹⁶
- f. In December of 2010 and in response to the pressure from their supervisors to write baseless summonses pursuant to the policy and practice of “quotas,” police officers at the 79th Precinct considered organizing a so-called “daylong summons boycott.” As one (1) officer at the precinct explained, “Nobody feels this is right, asking us to write summonses just to meet a quota.”¹⁷
- g. In response to the planned summons-boycott at the 79th Precinct, on December 13, 2010, Deputy Chief Michael Marino marched into the precinct at roll call with a deputy inspector and read officers the riot act. “Just try it,” a police source quoted Marino as saying. “I’ll come down here and make sure you write them.” Marino also vowed to transfer people, like he did when he was the commanding officer of the 75th Precinct in East New York.¹⁸
- h. Capt. Alex Perez, the second in command at the NYPD’s 81st Precinct, testified in a civil matter before a Brooklyn Supreme Court jury that officers are likely to get poor performance ratings if they have few arrests, conceding that that arrest numbers are a factor in evaluating an officer’s performance.¹⁹ Ultimately, the jury in that case ruled that the police had a policy “regarding the number of arrests officers were to make that violated plaintiff’s constitutional rights and contributed to her arrest.”²⁰
- i. The New York City Office of Collective Bargaining concluded that officers in Brooklyn’s 75th Precinct were required to issue four (4) parking tickets, three (3) moving violation citations, three (3) “quality-of-life” summonses, make one (1) arrest

¹⁶ Tom Namako and Kirsten Fleming, *Nighttime Riders in Big Sit Fit*, The New York Post, December 26, 2009, available at http://www.nypost.com/p/news/local/space_hogs_lapped_on_empty_subways_m7iRAd9b4E9aYPuGvy5OO.

¹⁷ Rocco Parascandola, *Irate cops at 79th Precinct in Bedford-Stuyvesant threaten boycott over quotas*, N.Y. Daily News, Dec. 12, 2010, available at http://www.nydailynews.com/news/ny_crime/2010/12/12/2010-12-12_bklyn_cops_threaten_tixwriting_boycott.html#ixzz180Q0JW7t.

¹⁸ Rocco Parascandola, *Deputy Chief Michael Marino threatens cops at the 79th Precinct who want to go on summons strike*, N.Y. Daily News, Dec. 15, 2010, available at http://www.nydailynews.com/ny_local/2010/12/15/2010-12-15_summons_strike_i_dare_ya_deputy.html.

¹⁹ William J. Gorta, *Brooklyn Mom’s Suit Targets NYPD Arrest Quotas*, N.Y. Post, Feb. 15, 2011, at 6, available on Westlaw at 2011 WLNR 2986205; see also Oren Yaniv, *Capt. Links Arrests, Evaluation of Cops*, N.Y. Daily News, Feb. 15, 2011, at 20, also available on Westlaw at 2011 WLNR 2986205.

²⁰ Oren Yaniv, *Court rules that cops do use quotas, woman injured in 2006 arrest settles for \$75,000*, N.Y. Daily News, Feb. 19, 2011, available at http://www.nydailynews.com/news/ny_crime/2011/02/19/2011-02-19_court_rules_that_cops_do_use_quotas_woman_injured_in_2006_arrest_settles_for_750.html.

and two (2) stop-and-frisks each month. Arbitrator Bonnie Siber Weinstock ruled that the NYPD maintained an illegal “summons quota for traffic violations in the precinct and by penalizing officers for failing to meet the stated number of traffic citations.” She ordered the city to cease and desist from the practice.²¹

- j. Kieran Creighton, commander of the NYPD Housing Police Service Area 8 in the northern Bronx, was investigated for ordering officers to make a certain number of arrests each month. According to The New York Daily News:

The incident allegedly occurred in the spring when Creighton ordered at least eight members of an undercover anti-crime team to a meeting in Pelham Bay Park to berate them about an alleged lack of arrests, sources said.

“You can’t make the nine collars a month, then we’ll all have to go our separate ways,” Creighton told the officers, according to an internal complaint obtained by The News.

Anything less than nine arrests would be a “personal slap in the face,” Creighton allegedly said.

Creighton then told the cops to “finagle” the times of arrests so any overtime was paid for by a federally funded anti-drug program, the complaint alleges.

Unbeknownst to Creighton, one officer had his NYPD radio switched on - so the captain's 10 to 12 minute speech was broadcast to Bronx precincts in Morrisania and Schuylerville and taped by a 911 dispatcher.²²

74. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the failure to supervise, train, instruct and discipline police officers and encouraging their misconduct**, are further evidenced, *inter alia*, by the following:

- a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states:

²¹ *New York City Ticket Quota Confirmed, Denied*, The Newspaper.Com, January 21, 2006, available at <http://www.thenewspaper.com/news/09/914.asp>; see also, Kirsten Cole, *NYPD's Bogus Little Secret: Parking Ticket Quotas -- Agents Often Caught Citing You For Violations You Didn't Commit*; WCBSTV.com, August 14, 2007, available at <http://wcbstv.com/topstories/parking.ticket.blitz.2.246533.html> (referring to the arbitrator’s report).

²² Allison Gendar, *NYPD captain allegedly caught in arrest quota fixing*, The New York Daily News, November 14, 2007, available at http://www.nydailynews.com/news/ny_crime/2007/11/14/2007-11-14_nypd_captain_allegedly_caught_in_arrest_-1.html#ixzz0bfPBhRTz.

In the face of this problem [of corruption], the [NYPD] allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption control minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputations tainted – especially a Department that needs the public’s confidence and partnership to be effective. A weak and poorly resources anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what the Commission uncovered. This reluctance manifested itself in every component of the Department’s corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment. For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it.²³

- b. Accordingly, in 1990, the Office of the Special Prosecutor, which investigated charges of police corruption, was abolished.
- c. In response to the Honorable Judge Weinstein’s ruling of November 25, 2009 in *Colon v. City of New York*, 09 Civ. 00008 (E.D.N.Y.), in which he noted a “widespread... custom or policy by the city approving illegal conduct” such as lying under oath and false swearing, Commissioner Kelly acknowledged, “When it happens, it’s not for personal gain. It’s more for convenience.”²⁴
- d. Regarding defendant City’s tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct.²⁵ When it does, however, Police Commissioner Kelly controls whether

²³ Mollen Commission Report, pp. 2-3, available at http://www.parc.info/client_files/Special%20Reports/4%20-%20Mollen%20Commission%20-%20NYPD.pdf.

²⁴ Oren Yaniv and John Marzulli, *Kelly Shrugs Off Judge Who Slammed Cops*, New York Daily News, December 2, 2009, available at http://www.nydailynews.com/news/ny_crime/2009/12/02/2009-12-02_kelly_shrugs_off_judge_who_rips_lying_cops.html.

²⁵ In 2006, out of more than 10,000 allegations that were fully investigated, the CCRB substantiated only 594 (about 6%). In 2007, out of more than 11,000 allegations that were fully investigated, the CCRB substantiated only 507 (about 5%). See, CCRB Jan.-Dec. 2007 Status Report at p. 19, available at http://www.nyc.gov/html/ccrb/pdf/ccrbann2007_A.pdf. Upon information and belief, the low rate of substantiated complaints is due in part to the above-noted *de facto* policy and/or well-settled and widespread custom and practice in the NYPD whereby officers refuse to report other officers’ misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony and statements given to the CCRB, to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates.

the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one-quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than four (4) percent each year between 2002 and 2006, to thirty-five (35) percent in 2007, and approximately thirty (30) percent in 2008. Alarming, the NYPD has refused to prosecute forty (40) percent of the cases sent to it by the CCRB in 2009.²⁶ As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to sixty-six (66) percent in 2007. Substantiated complaints of excessive force against civilians accounted for more than ten (10) percent of the cases that the NYPD dropped in 2007 and account for more than twenty-five (25) percent of cases dropped in 2008.²⁷

75. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints, or otherwise falsifying or fabricating evidence**, are further evidenced, *inter alia*, by the following:

- a. The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.²⁸

[...]

What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a

²⁶ Christine Hauser, *Few Results for Reports of Police Misconduct*, New York Times, October 5, 2009, at A19.

²⁷ Daily News, *Editorial: City Leaders Must Get Serious About Policing the Police*, August 20, 2008.

²⁸ Mollen Commission Report, p. 36.

persistent belief among many officers that it is necessary and justifies, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”²⁹

- b. In June of 2011, in the case in New York County Supreme Court entitled People v. William Eiseman (Ind. No. 2999-2010), NYPD Sergeant William Eiseman pled guilty to perjury and falsifying police records, “admitt[ing] to faking a marijuana case against one man and cocaine-related charges against another – and training young [officers] to falsify paperwork to sidestep legal safeguards.” Supreme Court Justice Juan Merchan commented that Sgt. Eiseman’s admissions “paint a picture of a police officer who has challenged and undermined the integrity of the entire system we have here.”³⁰
- c. In late 2009, a former NYPD officer in the Bronx, Pedro Corniel, was charged with perjury for claiming to have caught a burglar “red-handed,” when, in fact, two other officers had made the arrest and handed the arrest off to Mr. Corniel. The suspect was released.³¹ Moreover,

Prosecutors and NYPD Internal Affairs probers have identified as many as two dozen cases in the past year in which cops allegedly made false statements involving routine arrests when the truth would have served them just as well.

That’s a significant increase over previous years, sources said. “In the past, we’d find this happening once or twice a year, and now there are a bunch of them,” said one law-enforcement official.

What has the authorities particularly troubled is that officers historically have lied to cover up more serious corruption, such as the cadre of Brooklyn narcotics cops caught last year stealing drugs from dealers and masking their thievery by filing false reports about what they had seized.

²⁹ Mollen Commission Report, pp. 40-41.

³⁰ Melissa Grace, *NYPD Sgt. William Eiseman pleads guilty to lying under oath in plea deal*, N.Y. Daily News, June 27, 2011, available at http://www.nydailynews.com/news/ny_crime/2011/06/27/2011-06-27_nypd_sgt_william_eiseman_pleads_guilty_to_lying_under_oath_in_plea_deal.html.

³¹ Murray Weiss, *NYPD in a Liar Storm*, N.Y. Post, Oct. 26, 2009, available at http://www.nypost.com/p/news/local/nypd_in_liar_storm_qazMBEm3UNJVogv4Ndeqcl.

But internal probers are now finding that officers appear willing to take insidious shortcuts and lie on arrest reports when they are processing even routine collars, such as grand larceny, burglaries and robberies, sources told The Post.

Their reasons could range from trying to cut down on paperwork to being lazy when filling out arrest and incident reports.³²

- d. In 2007, former NYPD Officer Dennis Kim admitted to accepting money and sexual favors from the proprietor of a brothel in Queens County in exchange for protecting that brothel. Mr. Kim was convicted of those offenses. The 109th Precinct of the NYPD, which used to be Mr. Kim's command, is also under investigation by the United States Attorney's Office for "plant[ing] drugs on suspects and steal[ing] cash during gambling raids." The 109th Precinct is believed to be involved in a practice known as "flaking" wherein police officers plant drugs on suspects in order to bring legitimacy to an arrest. According to Assistant United States Attorney Monica Ryan, members of the 109th Precinct "maintained a small stash of drugs in an Altoids tin for this purpose."³³
- e. In December of 2009, two (2) officers from the 81st Precinct in Brooklyn arrested and falsely swore out charges against an undercover officer from the Internal Affairs Bureau. As explained in an article in the New York Post:

The officers were snared in a sting by Internal Affairs in December when they were told to keep an eye out for people selling untaxed cigarettes in their precinct.

Some time later, they saw a man hanging out on a corner in the neighborhood and found that he was carrying packs of knock-off smokes.

[Sgt. Raymond] Stukes, 45, and [Officer Hector] Tirado, 30, cuffed him, but then claimed that they had seen him selling the bogus butts to two people, according to sources.

Little did the hapless cops know that the man in their custody was an undercover corruption investigator and that the whole incident was caught on video.

³² *Id.*

³³ John Marzulli, *Claims of Corruption at Queens Precinct Put Crooked Cop's Sentencing on Hold*, New York Daily News, June 20, 2008, available at http://www.nydailynews.com/news/ny_crime/2008/06/20/2008-06-20_claims_of_corruption_at_queens_precinct.html.

To complete the ruse, the undercover cop was processed at the station house so as to not tip off Stukes and Tirado about the sting...

[P]olice sources said [this action] stem[s] from precinct commanders caving to the pressure of top brass to make themselves look better.

“There’s pressure on the cops from the bosses and they’re getting pressured from headquarters,” a police source told The Post.³⁴

The officers were indicted for felony perjury, filing a false report and filing a false instrument.³⁵

- f. In early 2010, the City recently settled a civil rights lawsuit wherein one Officer Sean Spencer³⁶ falsely arrested and accused a 41-year old grandmother of prostitution, promising to pay the woman \$35,000. In court documents, Caroline Chen, the attorney representing the City in the case, admitted: “Officer Spencer falsely reported to the assistant district attorney that he saw [the plaintiff] beckon to three male passersby and that he was aware that plaintiff was previously arrested for [prostitution] when the plaintiff had never been arrested for this offense.”³⁷
- g. Separate grand jury investigations into drug-related police corruption in the Bronx and Manhattan revealed that more than a dozen officers had been breaking into drug dealers’ apartments, stealing and then selling their drugs and perjuring themselves by filing false arrest reports. District attorneys and their assistants interviewed during a four-month investigation by New York Newsday said they believe those two grand jury investigations - in the 46th Precinct in the University Heights section of the Bronx and the 34th Precinct - are not isolated instances. They say the investigations reflect a larger, broader problem within the NYPD that its top officials seem unable or unwilling to acknowledge.³⁸

³⁴ Larry Celona and Tim Perone, *Cops Sting Cops*, N.Y. Post, July 30, 2010, available at http://www.nypost.com/p/news/local/brooklyn/cops_sting_cops_lyItuTeLedhKWtruJZYsdL.

³⁵ John Marzulli, *Brooklyn cops charged with barding into sting operation, arresting a fellow officer on bogus charges*, N.Y. Daily News, July 30, 2010, available at http://www.nydailynews.com/ny_local/2010/07/30/2010-07-30_brooklyn_cops_charged_with_barging_into_sting_operation_arresting_a_fellow_offic.html.

³⁶ In sum, the City has paid out \$80,000 to settle four (4) federal lawsuits against Officer Sean Spencer. John Marzulli, *City shells out \$35G to grandmother, Monica Gonzalez, busted as hooker*, New York Daily News, January 7, 2010, available at http://www.nydailynews.com/ny_local/2010/01/08/2010-01-08_city_shells_out_35g_to_granny_busted_as_hooker.html.

³⁷ *Id.*

³⁸ David Kocieniewski and Leonard Levitt, *When the Finest Go Bad: DAs, others say department overlooks corruption*, New York Newsday, November 18, 1991, at 6.

76. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the practice or custom of discouraging police officers from reporting the corrupt or unlawful practices of other police officers and of retaliating against officers who report misconduct**, are further evidenced, *inter alia*, by the following:

- a. Former New York County District Attorney Robert Morgenthau has been quoted as acknowledging that, in the NYPD, there is a “code of silence,” or a “code of protection” that exists among officers and that is followed carefully;
- b. In 1985, former NYPD Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the “code of silence” in the NYPD;
- c. Former NYPD Commissioner Robert Daly wrote in 1991 that the “blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way.”

77. The existence of the above-described unlawful *de facto* policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officer and officials of the NYPD and the City, including, without limitation, Commissioner Raymond Kelly.

78. The actions of the individual police defendants resulted from and were taken pursuant to the above-mentioned *de facto* policies and/or well-settled and widespread customs and practices of the City, which are implemented by members of the NYPD, of engaging in systematic and ubiquitous perjury, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They do so with the knowledge and approval of their supervisors, commanders and Commissioner Kelly who all: (i) tacitly accept and encourage a code of silence wherein police officers refuse to report other officers’ misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau (“IAB”), and in public statements designed to cover for and/or falsely

exonerate accused police officers; and (ii) encourage and, in the absence of video evidence blatantly exposing the officers' perjury, fail to discipline officers for "testilying" and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates against those civilians.

79. All of the foregoing acts and omissions by defendants deprived Mr. Pantojas of federally protected rights, including, but limited to, the rights herein enumerated *supra*.

80. Defendant City knew or should have known that the acts alleged herein would deprive Mr. Pantojas of his rights, in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution.

81. Defendant City is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the City and the NYPD, and to require compliance with the Constitution and laws of the United States.

82. Despite knowledge of such unlawful *de jure* and *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City, including Commissioner Kelly, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate

indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

83. The aforementioned City policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein.

84. Mr. Pantojas's injuries were a direct and proximate result of the defendant City and the NYPD's wrongful *de jure* and *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant City and the NYPD to properly supervise, train and discipline their police officers.

JURY DEMAND

85. Mr. Pantojas demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE Mr. Pantojas demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

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Dated: New York, New York
October 1, 2012

Respectfully submitted,

/s/

By:

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